



Appeal Decision

Site visit made on 28 July 2026

by E Fawcett BA (Jt Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 8th September 2026

Appeal Ref: 6010021

Land adjacent 10 Hurtley Street, Burnley BB10 1BY

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr Mohammed Bashir against the decision of Burnley Borough Council.
 - The application Ref is PIP/2026/0028.
 - The development proposed is described on the application form as "Permission in Principle for the erection of one building to accommodate 6no. flats".
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Decision

1. The appeal is allowed and permission in principle is granted for the erection of one building comprising a minimum of 6 and a maximum of 6 flats at Land adjacent to 10 Hurtley Street, Burnley BB10 1BY in accordance with the terms of the application, Ref PIP/2026/0028.

Preliminary Matters

2. The proposal is for permission in principle. The Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing led development. The permission in principle consent route has 2 stages: the first ('permission in principle') stage establishes whether a site is suitable in principle and the second ('technical details consent') stage is when the detailed development proposals are assessed. This appeal relates to the first of these 2 stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted. It is also not possible for conditions to be attached to a grant of permission in principle. I have determined the appeal accordingly.
4. The PPG states that the amount of residential development must be expressed as a range, indicating the minimum and maximum number of dwellings. In this case, the minimum and maximum set out on the application form is 6 flats.
5. The Government published a revised National Planning Policy Framework (the Framework) on 17 August 2026. As there are no substantive changes relevant to the appeal before me, I am satisfied that no interested parties would be prejudiced by my determining the appeal without seeking representations on the revised Framework.

Main Issue

6. The main issue is whether the site is suitable for residential development, in terms of its location, the proposed land use and the amount of development, with particular regard to the effect of the proposal on the character and appearance of the area including in respect of open space.

Reasons

7. The appeal site comprises an area of mown grass located at the end of a row of 2-storey terraced dwellings. The surrounding area is characterised by long and regularly arranged terraced buildings and larger commercial and healthcare buildings and their associated parking areas.
8. Although the appeal proposal relates solely to the principle, the submission indicates that the development could be carried out as a continuation of the existing terrace, comprising 3 flats at ground-floor level and 3 flats at first-floor level. Whilst this would be unlikely to accommodate landscaping or other green infrastructure, such a form of development would broadly reflect the pattern and scale of the adjoining residential development.
9. Policy HS3 of Burnley's Local Plan (2018) (the Local Plan) requires new housing to make an efficient use of land, and be developed at a density appropriate to its location and setting, with a minimum density of 25 dwellings per hectare (dph). The provision of 6 flats on the appeal site would equate to approximately 309 dph. Whilst this would be substantially higher than the density of the surrounding residential development, this largely reflects that the proposal relates to flats rather than dwellinghouses. The level of built form would be unlikely to be significantly greater than that which might arise from 3 dwellings occupying the site.
10. Local Plan Policy NE2 relates to designated Protected Open Space and, as the appeal site does not benefit from such a designation, the policy does not apply directly. Although the supporting text to the policy indicates that the effects on non-designated open spaces should be considered, this requirement does not form part of the policy itself. Nevertheless, Policy SP6 seeks to protect, enhance and extend the borough's multifunctional green infrastructure network. The policy requires that, where appropriate to their nature and scale, proposals should seek to retain and enhance green infrastructure assets, be accompanied by an audit of green infrastructure functions within and adjacent to the site, and demonstrate any mitigation or replacement measures where the loss of, or adverse impact on, green infrastructure functionality is unavoidable. Notwithstanding this, Policy SP6 does not preclude the loss of green infrastructure assets.
11. No detailed green infrastructure audit has been provided. However, based on the evidence before me, the site is in private ownership and comprises a relatively small area of mown grass bounded by surrounding development and roads. There is no compelling evidence that it performs a significant recreational, ecological or strategic green infrastructure function, nor that it is functionally connected to other areas of open space. Its principal value appears to be aesthetic, providing a degree of openness and relief within a densely developed urban environment although limited by its small scale.
12. Furthermore, there is also landscaping and a larger area of open space to the south which provide a greater aesthetic contribution within the surrounding area.

Consequently, whilst the proposal would result in a loss of green space, the site's limited size, function and value mean that its development would not undermine the functionality of the wider green infrastructure network. In this case, having regard to the scale and characteristics of the appeal site, I find that the harm arising from the loss of the green infrastructure would be small and would therefore comply with the overall aims of Policy SP6.

13. For these reasons, I conclude that the site is suitable for residential development, in terms of its location, the proposed land use and the amount of development, with particular regard to the effect of the proposal on the character and appearance of the area including in respect of open space. It would therefore comply with Local Plan Policies SP1, SP5, SP6, HS3 and NE2. Collectively these seek to ensure, amongst other things, that the borough's multifunctional green infrastructure network is protected, and that proposals make efficient use of land, are built at a density appropriate to their location and setting and they respect the townscape setting and locally characteristic street layouts, scale and massing.

Other Considerations

14. Whilst the Council can demonstrate a housing land supply that exceeds 5 years, this is not a maximum target. Therefore, this does not lead me to a different conclusion on the main issue.
15. Interested parties have raised concerns regarding increased noise, dust and dirt during construction, refuse storage, sustainable drainage infrastructure and biodiversity. However, these matters fall outside the scope of consideration at the first stage of the permission in principle process and would therefore be considered as part of a subsequent technical details consent application.
16. Although the site is not allocated for housing development, planning permission may still be granted where a proposal complies with the policies of the development plan. The effect of the proposal on neighbouring living conditions, parking provision and highway safety would be considered at the technical details stage, although they are relevant considerations at the permission in principle stage insofar as they relate to the type and quantum of development proposed.
17. Whilst development on the appeal site would alter the outlook for those properties backing onto the site, I have no doubt that the number of units proposed could be delivered without causing harm to the living conditions of the occupiers of neighbouring properties. Noting the accessible urban location of the site, the availability of on-street parking on surrounding streets, and the low quantum of development proposed, I am satisfied that the parking requirements arising from the development could be absorbed into the local area without causing harm to highway safety.

Conclusion

18. For the above reasons, I conclude that the site is suitable for residential development, in terms of its location, the proposed land use and the amount of development proposed. Therefore, the appeal should be allowed.

E Fawcett

INSPECTOR